

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Janine Zajac	Team: Team # 1	CCRB Case #: 201212190	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/19/2012 11:50 PM, Thursday, 09/27/2012 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/19/2014	Precinct: 70		
Date/Time CV Reported Thu, 09/20/2012 12:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/20/2012 12:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Winston Willabus	03104	935969	070 PCT
2. POM Steve Richards	02946	937372	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Foder	17145	946997	070 PCT
2. POM Christopher Donohue	09014	943182	070 PCT
3. POM Brian Flynn	30217	945190	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Winston Willabus	Abuse: On September 19, 2012, at § 87(2)(b) in Brooklyn, and on September 27, 2012 at § 87(2)(b) in Brooklyn, Sgt. Winston Willabus stopped § 87(2)(b)	A . Unsubstantiated
B . SGT Winston Willabus	Abuse: On September 19, 2012, at § 87(2)(b) in Brooklyn, Sgt. Winston Willabus searched § 87(2)(b)	B . Unsubstantiated
C . POM Steve Richards	Abuse: On September 19, 2012, at § 87(2)(b) in Brooklyn, and September 27, 2012, at § 87(2)(b) in Brooklyn, PO Steve Richards strip-searched § 87(2)(b)	C . Unsubstantiated
D . SGT Winston Willabus	Abuse: On September 19, 2012, at § 87(2)(b) in Brooklyn, and on September 27, 2012 at § 87(2)(b), Sgt. Winston Willabus refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated
E . SGT Winston Willabus	Abuse: On September 19, 2012, at § 87(2)(b) in Brooklyn, Sgt. Winston Willabus threatened to arrest § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 20, 2012, § 87(2)(b) filed the following complaint over the phone with the CCRB (encl. 3a-b), and during his interview at the CCRB, filed an additional complaint.

On September 19, 2012, § 87(2)(b) encountered Sgt. Winston Willabus and PO Steve Richards, both of the 70th Precinct, at § 87(2)(b) in Brooklyn, and again on September 27, 2012 near the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. The following allegations resulted.

- [illegible]

§ 87(2)(b) declined to mediate his complaint. This complaint was re-assigned to the undersigned investigator on February 23, 2013 due to the departure of Inv. Wendy Sawyer.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *black male, § 87(2)(b) with black hair and brown eyes.* § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on October 12, 2012 (encl. 5a-f). § 87(2)(g) . On the afternoon of September 19, 2012, § 87(2)(b) was standing with two friends, “§ 87(2)(b) and “§ 87(2)(b) (whose last names he does not know) outside of a Dominican corner store at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. A marked police car pulled up and an officer, identified via investigation as Sgt. Winston Willabus, exited and approached the group. § 87(2)(b) described Sgt. Willabus as a black male in his 40s, standing over 6’0” tall with a medium build, low haircut, and wearing a uniform with blue stripes on the sleeve of the blue shirt. One of § 87(2)(b) s friends recognized Sgt. Willabus as the same officer who had arrested § 87(2)(b) on June 28, 2012 for unlawful assembly for standing with friends on the same corner. Sgt. Willabus is known to § 87(2)(b) and his friends as “the Lieutenant” from previous encounters with him and his reputation in their neighborhood. As Sgt. Willabus exited the car, § 87(2)(b) announced to no one in particular that he did not want to be arrested for unlawful assembly again, and walked away. He did not know what happened with § 87(2)(b) and § 87(2)(b) after he left.

Sometime after 11:00 p.m. that night, § 87(2)(b) was at § 87(2)(b) restaurant at § 87(2)(b) in Brooklyn. He consumed two shots of tequila there but was not intoxicated, and he was ordering food to take home. The door to the restaurant opened and he saw Sgt. Willabus at the door. Sgt. Willabus instructed § 87(2)(b) to come outside, which he did. Outside of the restaurant on the sidewalk, Sgt. Willabus stood with two other officers, one of whom has been identified via investigation as PO Steve Richards. § 87(2)(b) described PO Richards as a black male, 6’0” tall, with a medium, somewhat muscular build and a darker complexion than Sgt. Willabus, dressed in a regular uniform. He described the other officers as a white male, standing about 5’10” tall with a medium build, dressed in a regular uniform. § 87(2)(b) did not mention this third officer in his phone statement. Their marked police car, #3171, was parked in a bus stop in front of the restaurant. There were 5-6 unidentified people also standing outside the restaurant, along with an acquaintance of § 87(2)(b) s, § 87(2)(b) § 87(2)(b) did not know § 87(2)(b) s full name, but he has been identified via investigation as § 87(2)(b) § 87(2)(b)

Sgt. Willabus immediately ordered § 87(2)(b) to put his hands up, which he did. Sgt. Willabus grabbed him by the front of his shirt by his upper arm. Sgt. Willabus told him to take his shoes off, and § 87(2)(b) kicked his shoes off. Sgt. Willabus picked up his shoes and looked at them, but did not put his hands inside of the shoes. PO Richards opened § 87(2)(b) s belt, and pulled his pants down so that the waistband was below his hip joint. PO Richards then pulled the front waistband of § 87(2)(b) s boxer shorts out as far as it would go and shined a flashlight down inside his shorts, examining § 87(2)(b) s naked body underneath. He then pulled the rear waistband of the boxer shorts out and shined a flashlight down inside the back of his shorts. § 87(2)(b) was never asked for his identification. After about 3-4 minutes, he was allowed to pull his pants up and put his shoes back on. In his phone statement, § 87(2)(b) attributed these allegations to Sgt. Willabus.

Sgt. Willabus asked § 87(2)(b) why he had walked away earlier. § 87(2)(b) explained that he had not wanted to be arrested again for unlawful assembly. Sgt. Willabus asked § 87(2)(b) whether he had been drinking, and § 87(2)(b) replied that he had bought drinks at the restaurant. Sgt. Willabus told him he should give him a ticket for public drunkenness, and § 87(2)(b) objected, stating that he was not drinking but just trying to order some food and go home. § 87(2)(b) stated that he was going to want the officers’ badge numbers when they were done. Sgt. Willabus said, “There is only one way to get my badge number – you know.” § 87(2)(b)

§ 87(2)(b) interpreted this to mean he could only get the number if he was arrested. Sgt. Willabus finally said if § 87(2)(b) was still there when the officers returned in fifteen minutes, § 87(2)(b) would “go with [him].” The officers left and § 87(2)(b) said he recorded the incident on his camera phone. § 87(2)(b) got his food and went home.

§ 87(2)(b) also reported a second incident involving Sgt. Willabus and PO Richards, the date of which he could not recall, but was determined via investigation to be September 27, 2012. A third officer was present but § 87(2)(b) was not sure whether it was the same additional officer from the previous date. He described this officer only as a white male with a somewhat shorter stature. All three officers were in a marked car and dressed in uniform. At approximately 9:00 p.m., § 87(2)(b) was walking on § 87(2)(b) toward § 87(2)(b) in Brooklyn after parking his car on § 87(2)(b) between § 87(2)(b) and § 87(2)(b). They pulled up next to him, facing westward toward § 87(2)(b). All three officers stepped out of the vehicle. No one was outside on the street at the time, and the nearby businesses were closed. When § 87(2)(b) saw the officers pull up near him, he said, “No, you’re not going to do this to me again,” put his hands up with his palms facing forward and kept walking. Sgt. Willabus ordered him to stop and § 87(2)(b) asked why he was being stopped again. Sgt. Willabus asked him, “What did I tell you about being out here? I’ve been telling you for the last two years, you can’t be out here.” § 87(2)(b) replied that he lived in the area, and asked why he could not be there if he was not doing anything wrong.

Sgt. Willabus then stated, “You already know; you know what time it is.” § 87(2)(b) asked, “You’re going to pull my pants down in the street again?” Sgt. Willabus approached and grabbed his shirt by his shoulder as before. § 87(2)(b) squirmed, twisting his shoulders and moving his arms, trying to get free of his grip, and asked why they were always pulling his pants down. Sgt. Willabus told him to stop moving and to take his shoes off, and § 87(2)(b) kicked off his shoes. He did not state whether they looked at his shoes this time. § 87(2)(b) asked if they wanted him to pull his pants down, since that was what they were going to do anyway. Sgt. Willabus said, “Not unless you want to be locked up for indecent exposure.” PO Richards lowered his pants and they fell to mid-thigh. PO Richards then looked inside of his boxer shorts with a flashlight, and lowered the back of his shorts so that his buttocks were exposed. The third officer stood to the side and watched the search, which took approximately five minutes. Sgt. Willabus let go of § 87(2)(b)’s shirt when PO Richards found nothing in his shorts. No one wrote anything down or said anything, nor ever asked § 87(2)(b) for identification.

While § 87(2)(b) was being searched, an acquaintance and resident of a nearby building whom § 87(2)(b) knows only as “§ 87(2)(b)” called out of his window to the officers, telling them that they were wrong and could not perform a strip search in the street. This individual has been identified via investigation as § 87(2)(b). Sgt. Willabus saw § 87(2)(b) looking for the officers’ vehicle number, and asked § 87(2)(b) if he wanted to go with them. § 87(2)(b) replied that he did not. He then asked Sgt. Willabus for his badge number, and Sgt. Willabus responded, “Do you want to come with us?” § 87(2)(b) never obtained his badge number. Sgt. Willabus repeated that he had been telling § 87(2)(b) for the past three years that he should not be out there and advised him to go home. § 87(2)(b) was reached on March 25, 2013 about the video that § 87(2)(b) recorded. He confirmed that § 87(2)(b) gave him the video, which was approximately two seconds long, showed only the ground, and had no audio. § 87(2)(b) no longer had the video.

Witness: § 87(2)(b)

- § 87(2)(b)’s pedigree information is not known.

Phone Statement

§ 87(2)(b) provided the following statement over the phone on February 6, 2013 (encl. 6a), § 87(2)(g) . No one was instructed to exit § 87(2)(b) except § 87(2)(b) § 87(2)(b) stayed inside the restaurant and tried to record a portion of the incident through the glass window. He recorded some of the incident, but the footage was not clear and he gave the memory chip from his phone with the recording on it to § 87(2)(b)

There were two police cars present. He described one of the officers, whose name he could not recall during his phone statement, as a thirty-nine or forty-year-old black male, 220 lbs., 6'2"-3", with sergeant stripes on his uniform sleeve. This officer has been identified via investigation as Sgt. Willabus. § 87(2)(b) could not describe PO2 in any way. Sgt. Willabus and PO2 felt around the entire inside of § 87(2)(b)'s waistband. They patted the outside of his clothing on his legs, arms, shoulders, groin area, and in his hat, and reached into his front and back pants pockets. § 87(2)(b) could not recall if § 87(2)(b)'s undergarments were exposed at any point. § 87(2)(b) did not believe any officers used a flashlight during the search. The officers did not find anything on § 87(2)(b). No one other than § 87(2)(b) was searched or questioned. The search lasted approximately seven minutes. § 87(2)(b) did not hear the officers say anything to § 87(2)(b) other than at the end of the interaction when Sgt. Willabus said to § 87(2)(b) "If I come around again and you are still here, you're going to take a trip for the night." PO3 and PO4 got out of the second car, but § 87(2)(b) could not describe them in anyway.

After providing his phone statement, § 87(2)(b) said he was willing to schedule an interview but a time was not set up. § 87(2)(b)'s voice messaging system was full and not accepting messages on March 4, 2013. A message was left with the person who answered on March 19, 2013. § 87(2)(b) was reached on March 25, 2013, and he scheduled an appointment for March 28, 2013. § 87(2)(b) did not appear for this appointment and did not call ahead to cancel or reschedule. A "missed appointment" letter was sent that same day. A voice message was left on April 1, 2013, and a message was left with the person who answered his cell phone on April 18, 2013. § 87(2)(b) did not respond to these contact attempts.

Attempts to Contact Civilians

§ 87(2)(b) provided a phone number for § 87(2)(b) whose full name and address he did not know. This individual was identified via investigation as § 87(2)(b). Voice messages were left on October 22, 2012, and March 4, 2013. A message was left with § 87(2)(b)'s mother on March 19, 2013. A message was left with the person who answered on March 25, 2013, and another message was left with his mother on April 1, 2013. Letters were sent on March 19, 2013 and March 28, 2013. § 87(2)(b) did not respond to these contact attempts.

NYPD Statements:

Subject Officer: SGT. WINSTON WILLABUS

- § 87(2)(b)-year-old Hispanic male, § 87(2)(b), with black hair and brown eyes.
- On September 19, 2012, he worked from 5:15 p.m. to 2:12 a.m. as the conditions sergeant with PO Richards. He was dressed in uniform and assigned to marked vehicle #3171. On September 27, 2012, he worked from 3:00 p.m. until 11:57 p.m. as the SNEU sergeant. Sgt. Willabus was in uniform and he believed he was with PO Steve Richards and PO Brian Flynn in the marked apprehension vehicle, #5041.

Memo Book

Sgt. Willabus had the following memo book entries pertaining to these incidents (encl. 7a-d). On September 19, 2012, at 10:30 p.m., two Stop, Question, and Frisk Reports were completed for individual stopped in front of § 87(2)(b) and at 11:35 p.m. one additional report was completed for an individual stopped across the street from § 87(2)(b).

Sgt. Willabus did not have memo book entries pertaining to this incident on September 27, 2012, but his memo book shows that PO Richards was working with PO Flynn. At 9:00 p.m. he was at a set in the vicinity of § 87(2)(b) and § 87(2)(b) and he noted an arrest at § 87(2)(b) and § 87(2)(b), but did not specify the time at which it occurred. At 11:00 p.m. he arrived at the 70th Precinct stationhouse.

CCRB Testimony

Sgt. Willabus was interviewed at the CCRB on February 5, 2013 and May 31, 2013 (encl. 8a-g). On September 19, 2012, Sgt. Willabus was conducting patrol with PO Richards when he received a call on his cell phone from the manager of a store located at § 87(2)(b). Sgt. Willabus described the area as commercial and explained that he has been to meetings with the business improvement district, a management company, and community activists. There have been several incidents in the area involving slashings, drug sales, drinking, and disorderly conduct. The complaints generally involve the same four or five males, several of whom have been arrested before, including § 87(2)(b). The store manager that called on this occasion complained that there were several individuals coming in and out of the store, drinking and selling drugs, and asked Sgt. Willabus to come over and help.

Sgt. Willabus went to the area and observed 4-5 individuals, including § 87(2)(b) “hanging out” in front of § 87(2)(b). He did not recall whether any of them were drinking, but if they were he probably would have issued summonses to them. Sgt. Willabus recognized a couple of these individuals from previous arrests. Some of the individuals recognized him from his primary role as a narcotics officer in the Precinct. A couple of the individuals, including, he believed, § 87(2)(b) started to move away, while others stayed. In his experience, § 87(2)(b) generally walks off or walks off at first before circling back around when Sgt. Willabus gathers the whole group together to speak to them as a group. Sgt. Willabus told the individuals that remained that there had been complaints about them hanging out, and ordered them to leave the area. Sgt. Willabus did not know the names of these individuals except § 87(2)(b). PO Richards obtained their identifications and they were allowed to leave once he took their information for Stop, Question, and Frisk Reports, which were filled out by PO Richards. No one was issued a summons at that time.

Sgt. Willabus and PO Richards drove around until 11:35 pm, when they observed the same individuals in front of a restaurant called “§ 87(2)(b)” which is opposite the store at § 87(2)(b). The group, which included three unidentified males and § 87(2)(b) was “hanging out,” walking in and out of the door, and carrying their drinks in and out of the restaurant. Sgt. Willabus saw some individual drink from the cups. When Sgt. Willabus and PO Richards pulled up to the restaurant, a couple of the individuals tried to go back inside the restaurant. Sgt. Willabus saw § 87(2)(b) outside the restaurant, but did not recall whether he tried to go inside. The officers opened the door of the restaurant to call back outside the individuals that had gone inside, so they could address them as a group. Sgt. Willabus stopped them because he had asked them to leave the area earlier and they had simply moved across the street. In addition, a few weeks before, there had been a slashing incident in which the perpetrator had run into § 87(2)(b). Sgt. Willabus told the group why they were being stopped and that they needed to leave.

Sgt. Willabus confirmed the cups had alcohol in them when he asked if he could smell their cups, and a couple of them admitted they had alcohol. Sgt. Willabus could not recall if it was liquor or beer. He and PO Richards told the group about crime in the area, that complaints had been made, and that they could not hang out at a place of business all night. Some of the individuals claimed that they were buying or waiting for food at the restaurant; others said they would leave. Sgt. Willabus did not recall § 87(2)(b)'s statements, and did not know whether it was true that some of them were waiting for food. All of the individuals that were stopped left immediately after this interaction.

Sgt. Willabus could not recall whether or not any of the individuals he and PO Richards stopped at § 87(2)(b) was intoxicated. He stated that § 87(2)(b) often is intoxicated; that is "one of his issues." No one was summonsed, although some of them appeared to be drinking. Sgt. Willabus stated that usually he "gives them a break" when they are drinking, because he is not as concerned about that unless store owners complain about it. During the stop, PO Richards frisked § 87(2)(b) and possibly one other unidentified male in the group. Sgt. Willabus did not instruct PO Richards to do frisk anyone. PO Richards patted down the outside of their clothing, down to the ankles and back up. Sgt. Willabus did not see PO Richards loosen or lower any clothing. Sgt. Willabus did not recall if PO Richards used a flashlight, and did not see him shine a light down § 87(2)(b)'s pants. Sgt. Willabus denied ordering § 87(2)(b) to remove his shoes, and denied that anyone ordered him to do so. Nothing was found as a result of the frisk(s).

Sgt. Willabus said § 87(2)(b) was frisked because he did not leave the area when asked the first time and his history with violence, drugs, and alcohol. Sgt. Willabus said that in the late spring or early summer of 2012, § 87(2)(b)'s significant other reported that § 87(2)(b) beat her up and threatened her with a gun, and there were other reports from individuals in the area that § 87(2)(b) stores a gun in his car. Sgt. Willabus also noted his team has observed § 87(2)(b) and his "crew" involved in hand-to-hand transactions in the past, and § 87(2)(b) has been intoxicated in public in the past. When asked if he saw anything in his appearance on this date that indicated § 87(2)(b) might have weapons, Sgt. Willabus stated, "Just his movements," and he found it suspicious that § 87(2)(b) tried to "mix in with the crowd," which suggested to Sgt. Willabus that he was possibly trying to hide contraband or possibly a weapon. This was unusual behavior for § 87(2)(b) as he usually is at the forefront of interactions.

At some point, § 87(2)(b) told Sgt. Willabus that he was "going to get [his] name and shield." Sgt. Willabus pointed to his shield and told him it was right there, and that he should know it already because he had arrested him several times. § 87(2)(b) responded that he was going to write the information down, but Sgt. Willabus did not see him do so. At some point during this portion § 87(2)(b) said Sgt. Willabus' name to Sgt. Willabus. Sgt. Willabus' representative said, "For the record, you usually give your name and shield when someone asks for it," and Sgt. Willabus said, "Oh, yeah." When asked if he responded with his name and shield number when § 87(2)(b) asked, Sgt. Willabus said, "Yes." Sgt. Willabus denied ever saying anything like, "There's only one way to get my badge number," or "You're going to come with us." A Stop, Question, and Frisk Report was prepared for one individual, he believed § 87(2)(b) during this stop. In a situation such as this when Sgt. Willabus is with an officer who stops or frisks someone, it is the officer's responsibility to make sure the Stop, Question, and Frisk Reports are completed and Sgt. Willabus is there to review them. Sgt. Willabus could not recall if he reviewed or signed reports for this incident.

Sgt. Willabus did not recall interacting with § 87(2)(b) on September 27, 2012. He confirmed that his team was on a set in the vicinity of § 87(2)(b) and § 87(2)(b) at 9:00 p.m., and he said his team had an arrest at 11:00 p.m. at § 87(2)(b) and § 87(2)(b), though his memo book does not specify the time of this arrest. His memo book does not note that he left the vicinity of § 87(2)(b) and § 87(2)(b) until he arrived at the 70th Precinct

stationhouse at 11:00 p.m. Sgt. Willabus did not recall § 87(2)(b) walking alone down § 87(2)(b) or that an unidentified male yelled out of his window that they could not search § 87(2)(b) in the street. Sgt. Willabus viewed the MISD printout that shows he performed a warrant check for § 87(2)(b) on September 27, 2012 at 10:10 p.m. This did not refresh his memory. Sgt. Willabus did not recall seeing PO Richards search § 87(2)(b) on September 27, 2012 by pulling his waistband out and shining a flashlight down inside his pants, or any other way. He did not recall that § 87(2)(b) requested his name and shield again on this date. He did not recall if he reviewed a Stop, Question, and Frisk Report completed for § 87(2)(b) regarding an interaction on September 27, 2012.

Subject Officer: PO STEVE RICHARDS

- § 87(2)(b)-year-old black male, § 87(2)(b) with black hair and brown eyes.
- On September 19, 2012, PO Richards worked a uniformed conditions assignment from 5:30 p.m. until 2:05 a.m. and he was Sgt. Willabus' operator. He was assigned to marked vehicle, #3171. On September 27, 2012, he worked a uniformed SNEU assignment from 3:00 p.m. until 11:35 p.m. He did not have his partner or vehicle assignment noted in his memo book, but he assumed that he worked in a marked vehicle because he typically uses a marked vehicle when he works a SNEU assignment.

Memo Book

PO Richards did not have memo book entries pertaining to the incident on September 19, 2012 or September 27, 2012 (encl. 9a-d). PO Richards had § 87(2)(b)'s name, address, and date of birth written on a corresponding fly sheet in his memo book, and noted the time of 11:35 p.m. on September 19, 2012.

CCRB Testimony

PO Richards was interviewed at the CCRB on May 28, 2013 (encl. 10a-c). PO Richards did not recall either incident. The notation on his fly sheet of his memo book indicated to PO Richards that he was present for a stop of § 87(2)(b) at 11:35 p.m., but he had no independent recollection of this incident. PO Richards said that usually he writes names on his fly sheet of people who he stops. When asked if there was a reason why he did not have an actual memo book entry regarding the interaction, PO Richards said there was not. PO Richards did not recall stopping § 87(2)(b) and could not recall if obtained § 87(2)(b)'s information directly from § 87(2)(b) verbally or from his identification, or if it was provided to him by another officer. PO Richards is not familiar with § 87(2)(b). PO Richards was not aware that Sgt. Willabus is familiar with § 87(2)(b) or that Sgt. Willabus and § 87(2)(b) have interacted numerous times. He viewed the case file photo of § 87(2)(b) and he recognized him from the area.

When asked if a Stop, Question, and Frisk Report would be completed in an instance where he has someone's information written on his fly sheet or if he obtained someone's identification, PO Richards said, if questions are asked of an individual but they are free to leave, a suspected crime does not need to be noted. PO Richards did not know what the stop of § 87(2)(b) was about, whether he conducted it or if another officer did, or if there even was a stop. PO Richards said it happens frequently that an officer will conduct a stop and he will then obtain the individual's information from that officer. PO Richards did not recall if he frisked § 87(2)(b) on September 19, 2012 or if he saw any other officer frisk him. PO Richards did not recall if he pulled § 87(2)(b)'s shorts out and then shined a flashlight down into his shorts, and he did not recall if he saw another officer do this, and noted that he does not ever perform such searches. PO Richards did not recall if he heard § 87(2)(b) ask Sgt. Willabus for his name or shield number on September 19, 2012.

PO Richards did not recall interacting with § 87(2)(b) on September 27, 2012. He viewed the MISD information which shows Sgt. Willabus conducted a warrant search for § 87(2)(b) at 10:10 p.m. on September 27, 2012 and also on September 19, 2012. This did not refresh his memory of the incidents and did not recall that any of the alleged actions or statements occurred. PO Richards did not recall that he pulled § 87(2)(b)'s waistband out and looked in his pants with a flashlight, and he did not recall if he pulled his pants down so that his buttocks were exposed. PO Richards denied that he has ever done these things on the street.

Witness Officer: PO BRIAN FLYNN

- § 87(2)(b) -year-old white male, § 87(2)(b), with blonde hair and blue eyes.
- On September 19, 2012, PO Flynn worked a court tour on September 19, 2012 from 8:00 a.m. until 4:35 p.m. On September 27, 2012, he worked from 3:00 p.m. until 11:35 p.m. as Sgt. Willabus' operator. He was dressed in uniform and assigned to a marked vehicle, #5041.

Memo Book

PO Flynn did not have memo book entries pertaining to this incident (encl. 11a-c). His memo book shows he worked a day tour on September 19, 2012, and he had no entries for the duration of his tour on September 27, 2012.

CCRB Testimony

PO Flynn was interviewed at the CCRB on May 24, 2013 (encl. 12a-b). PO Flynn did not work any additional assignment on September 19, 2012 after his court tour.

On September 27, 2012, PO Flynn was driving Sgt. Willabus and there were no other officers in their vehicle. PO Flynn did not have any entries in his memo book for September 27, 2012. PO Flynn knows who § 87(2)(b) is because he arrested him in June of 2012. PO Flynn viewed the case file photo of § 87(2)(b) and recognized him. PO Flynn was not aware that he interacted with § 87(2)(b) since that arrest. PO Flynn was shown Sgt. Willabus' memo book, which lists PO Flynn and PO Richards together. PO Flynn did not recall working with PO Richards on September 27, 2012.

PO Flynn viewed the MISD printout that shows Sgt. Willabus conducted a warrant check for § 87(2)(b) on September 27, 2012 at approximately 10:10 p.m. It did not refresh PO Flynn's recollection of this incident. PO Flynn did not recall seeing § 87(2)(b) on September 27, 2012, and he did not recall being present for an interaction with § 87(2)(b) on September 27, 2012 with Sgt. Willabus and PO Richards. He did not recall that any of the alleged actions or statements occurred.

NYPD Documents

Sprint Indexes

The sprint indexes for September 19, 2012 and September 27, 2012 did not reveal any Sprint reports pertaining to these incidents (encl. 14a-g).

MISD Warrant Checks

A printout regarding warrant checks performed for § 87(2)(b) show that Sgt. Willabus conducted warrant checks for him on September 19, 2012 at 11:50 p.m. and on September 27, 2012 at 10:10 p.m.

Stop, Question, and Frisk Report Indexes

The 70th Precinct Stop, Question, and Frisk Report indexes for September 19, 2012 and September 27, 2012 did not reveal any such reports pertaining to these incidents (encl. 17a-i).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 12, 2012 with regard to this incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Civilian CCRB History

- § 87(2)(b) has been involved with the following CCRB complaints (encl. 2a).
 - § 87(2)(b)

Subject Officers CCRB History

- PO Richards has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 1c-d).
- Sgt. Willabus has been a member of the service for nine years and there is one substantiated CCRB allegation against him (encl. 1a-b).
 - In case #200700641, an allegation that Sgt. Willabus improperly detained someone was substantiated and charges were recommended. No disciplinary action was taken.

Conclusion

Identification of Subject Officers

Sgt. Willabus acknowledged his and PO Richards' interaction with § 87(2)(b) on September 19, 2012. § 87(2)(g)

Allegations Not Pleaded

Although Sgt. Willabus said that PO Richards frisked § 87(2)(b) PO Richards did not recall this and § 87(2)(b) did not allege that this occurred. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: On September 19, 2012, at § 87(2)(b) in Brooklyn, and on September 27, 2012 at § 87(2)(b) and § 87(2)(b) in Brooklyn, Winston Willabus stopped § 87(2)(b)

Allegation B – Abuse of Authority: On September 19, 2012, at § 87(2)(b) in Brooklyn, Sgt. Winston Willabus searched § 87(2)(b)

§ 87(2)(b) said that on September 19, 2012, Sgt. Willabus approached him and his friends but § 87(2)(b) left before any interaction occurred. Later that same night, Sgt. Willabus approached § 87(2)(b) again as he was inside of a restaurant located at § 87(2)(b) where § 87(2)(b) was purchasing food and told him to come outside. § 87(2)(b) alleged that as soon as he complied with Sgt. Willabus' command, Sgt. Willabus ordered him to put his hands up, which he did. Sgt. Willabus grabbed the front of his shirt near his upper arm. Sgt. Willabus told him to take his shoes off, and § 87(2)(b) kicked his shoes off. Sgt. Willabus looked into the shoes but did not reach into them.

Sgt. Willabus confirmed that he approached § 87(2)(b)'s group on September 19, 2012 and told them to leave the area and that he then returned to the area later that night. According to Sgt. Willabus, after seeing multiple individuals walking in and out of a restaurant carrying open containers of what he believed to be alcohol, he approached the group at the restaurant because he had asked them to leave the area earlier and they had simply moved across the street. He opened the door to the restaurant and had § 87(2)(b) step outside so he could speak to the group all together. He confirmed their cups contained alcohol. Sgt. Willabus told the group why they were being stopped and that they needed to leave, and PO Richards' obtained information to complete documentation.

§ 87(2)(b) alleged that on September 27, 2012, Sgt. Willabus approached him and grabbed his shirt near his shoulder as before. § 87(2)(b) squirmed, twisted his shoulders and moved his arms to get free of his grip, and asked why they were always pulling his pants down. Sgt. Willabus told him to stop moving and to take his shoes off, and § 87(2)(b) kicked off his shoes. § 87(2)(b) did not say if Sgt. Willabus looked into his shoes this second time. Sgt. Willabus did not admit to participating in searching § 87(2)(b) in any way on September 27, 2012 and had no recollection of the interaction on this date.

According to § 87(2)(b) he was grabbed and searched and only then was asked about drinking alcohol. According to Sgt. Willabus, individuals were drinking from open containers outside of the restaurant, § 87(2)(g)

§ 87(2)(b)
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§ 87(2)(b).

Allegation C – Abuse of Authority: On September 19, 2012, at § 87(2)(b) in Brooklyn, and September 27, 2012, at § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Steve Richards strip-searched § 87(2)(b)

§ 87(2)(b) alleged that on September 19, 2012, PO Richards opened his belt, and pulled his pants down so that the waistband was below his hip joint. PO Richards then pulled the front waistband of § 87(2)(b)'s boxer shorts out as far as it would go and shined a flashlight down

inside his shorts, examining § 87(2)(b)'s naked body underneath. He then pulled the rear waistband of the boxer shorts out and shined a flashlight down inside the back of his shorts. § 87(2)(b) also alleged that on September 27, 2012, PO Richards lowered his pants so they fell to mid-thigh. PO Richards then looked inside of his boxer shorts with a flashlight, and lowered the back of his shorts so that his buttocks were exposed.

PO Richards did not recall the interactions with § 87(2)(b) on either date. PO Richards did not recall if he pulled § 87(2)(b)'s shorts out and then shined a flashlight down into his shorts or that he pulled § 87(2)(b)'s shorts down so that any part of his body was exposed, and noted that he does not ever perform such searches. Sgt. Willabus did not see PO Richards loosen or lower any clothing on September 19, 2012. He did not recall if PO Richards used a flashlight, and did not see him shine a light down § 87(2)(b)'s pants. Sgt. Willabus did not recall the incident on September 27, 2012.

§ 87(2)(g)

Allegation D – Abuse of Authority: On September 19, 2012, at § 87(2)(b) in Brooklyn, and on September 27, 2012 at § 87(2)(b) and § 87(2)(b) in Brooklyn, Sgt. Winston Willabus refused to provide his shield number to § 87(2)(b)
Allegation E – Abuse of Authority: On September 19, 2012, at § 87(2)(b) in Brooklyn, Sgt. Winston Willabus threatened to arrest § 87(2)(b)

§ 87(2)(b) told Sgt. Willabus he wanted the officers' badge numbers, and Sgt. Willabus said, "There is only one way to get my badge number – you know." § 87(2)(b) interpreted this to mean he could only get the number if he was arrested. At the end of the interaction, Sgt. Willabus said that if § 87(2)(b) was still at the location when the officers returned in fifteen minutes, § 87(2)(b) would "go with [him]." § 87(2)(b) heard Sgt. Willabus say, "If I come around again and you are still here, you're going to take a trip for the night." On September 27, 2012, § 87(2)(b) asked Sgt. Willabus for his badge number and Sgt. Willabus responded, "Do you want to come with us?" § 87(2)(b) never obtained his badge number.

Sgt. Willabus said on September 19, 2012, § 87(2)(b) told Sgt. Willabus that he was "going to get [his] name and shield," and Sgt. Willabus pointed to his shield and told him it was right there, and that he should know it already because he had arrested him several times. Sgt. Willabus' representative said, "For the record, you usually give your name and shield when someone asks for it," and Sgt. Willabus said, "Oh, yeah." When asked if he responded with his name and shield number when § 87(2)(b) asked, Sgt. Willabus said, "Yes." Sgt. Willabus denied ever saying, "There's only one way to get my badge number," or "You're going to come with us."

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

[Redacted text block]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date